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Privacy Policy

Effective Date: November 15, 2021

American Well Corporation (“American Well,” “we,” “us,” or “our”) recognizes the importance of protecting the privacy of your personal information, and we have prepared this Privacy Policy to provide you with important information about the privacy practices applicable to the American Well Platform and any website or service that links to or refers to this Privacy Policy (collectively, the “Services”). In addition, individually identifiable information that you provide to us for purposes of obtaining medical care from Online Care Network II P.C. (“OCN”) (such information is also referred to as “Protected Health Information” or “PHI”) will also be subject to OCN’s Health Insurance Portability and Accountability Act Notice of Privacy Practices (the “HIPAA Notice”), which is available here. The HIPAA Notice describes how OCN and we can use and share your PHI and also describes your rights with respect to your PHI. To the extent that there is a conflict between this Privacy Policy and the HIPAA Notice with respect to PHI, the HIPAA Notice will prevail.

I. COLLECTION OF INFORMATION

We may collect the following kinds of information when you use the Services:

Information you provide directly to us. For certain activities, such as when you register, use our telemedicine services, subscribe to our alerts, or contact us directly, we may collect some or all of the following types of information:

- Contact information, such as your full name, email address, mobile phone number, and address;
- Username and password;
- Payment information, such as your credit card number, expiration date, and credit card security code;
- For health care providers, information about your employment, such as your job title, practice area, primary specialty, and medical license status, gender, date of birth, languages spoken, educational background, address, photograph, social security number, Tax ID, NPI number, professional license information and bank account information;
- Personal health information; and
- Any other information you provide to us.

We may combine such information with information we already have about you.

Information we collect automatically. We may collect certain information automatically when you use our Services, such as your Internet protocol (IP) address, device and advertising identifiers, browser type, operating system, Internet service provider, pages that you visit before and after using the Services, the date and time of your visit, information about the links you click and pages you view within the Services, and other standard server log information. We may also collect certain location information when you use our Services, such as your computer's IP address, your mobile device's GPS signal, or information about nearby WiFi access points and cell towers.

We may use cookies, pixel tags, Local Shared Objects, and similar technologies to automatically collect this information. Cookies are small bits of information that are stored by your computer's web browser. Pixel tags are very small images or small pieces of data embedded in images, also known as "web beacons" or "clear GIFs," that can recognize cookies, the time and date a page is viewed, a description of the page where the pixel tag is placed, and similar information from your computer or device. Local Shared Objects (sometimes referred to as "Flash Cookies") are similar to standard cookies except that they can be larger and are downloaded to a computer or mobile device by the Adobe Flash media player. By using the Services, you consent to our use of cookies and similar technologies.

We may also collect technical data to address and fix technical problems and improve our Services, including the memory state of your device when a system or app crash occurs while using our

Services. Your device or browser settings may permit you to control the collection of this technical data. This data may include parts of a document you were using when a problem occurred, or the contents of your communications. By using the Services, you are consenting to the collection of this technical data.

Information we obtain from your health care providers and other sources. In connection with your treatment, we may collect medical records from your past, current, and future health care providers. This may include information about your diagnosis, previous treatments, general health, laboratory and pathology test results and reports, social histories, any family history of illness, and records about phone calls and emails related to your illness.

II. USE OF INFORMATION

We generally use the information we collect online to:

- Provide and improve the Services;
- Contact you;
- Fulfill your requests for products, services, and information;
- Send you information about additional clinical services or general wellness from us or on behalf of our affiliates and trusted third-party partners;
- Analyze the use of the Services and user data to understand and improve the Services;
- Customize the content you see when you use the Services;
- Conduct research using your information, which may be subject to your separate written authorization;
- Prevent potentially prohibited or illegal activities and otherwise in accordance with our Terms of Use (which can be found at https://amwell.com/landing.htm); and
- For any other purposes disclosed to you at the time we collect your information or pursuant to your consent.

III. SHARING OF INFORMATION

We are committed to maintaining your trust, and we want you to understand when and with whom we may share the information we collect.

- *Healthcare providers, insurance companies, and other healthcare-related entities*. We may share your information with other health care providers, laboratories, government agencies, insurance companies, organ procurement organizations, medical examiners or funeral directors, and other entities relevant to providing you with treatment options and support.

- *Authorized third-party vendors and service providers.* We may share your information with third-party vendors and service-providers that help us with specialized services, including billing, payment processing, customer service, email deployment, business analytics, marketing (including but not limited to advertising, attribution, mobile marketing, optimization and retargeting), performance monitoring, hosting, and data processing. These third-party vendors and service providers may not use your information for purposes other than those related to the services they are providing to us.

- *Research partners.* We may share your information with our research partners to conduct health-related research; such sharing may be subject to your separate written authorization.

- *Corporate affiliates.* We may share your information with our corporate affiliates that are subject to this policy.

- *Business transfers.* We may share your information in connection with a substantial corporate transaction, such as the sale of a website, a merger, consolidation, asset sale, or in the unlikely event of bankruptcy.

- *Legal purposes.* We may disclose information to respond to subpoenas, court orders, legal process, law enforcement requests, legal claims or government inquiries, and to protect and defend the rights, interests, health, safety, and security of American Well, our affiliates, users, or the public. If we are legally compelled to disclose information about you to a third party, we will attempt to notify you by sending an email to the email address in our records unless doing so would violate the law or unless you have not provided your email address to us.

- *With your consent or at your direction.* We may share information for any other purposes disclosed to you at the time we collect the information or pursuant to your consent or direction.

Outside of the use cases specified above, we will not provide your information to third parties. However, if you access third-party services, such as Facebook, Google, or Twitter, through the Services to login to the Services or to share information about your experience on the Services with others, these third-party services may be able to collect information about you, including information about your activity on the Site, and they may notify your connections on the third-party services about your use of the Site, in accordance with their own privacy policies.

If you choose to engage in public activities on the Site or third party sites that we link to, you should be aware that any information you share there can be read, collected, or used by other users of these areas. You should use caution in disclosing personal information while participating in these sites. We are not responsible for the information you choose to submit in these public areas.

IV. SECURITY

We use reasonable measures to help protect information from loss, theft, misuse and unauthorized access, disclosure, alteration and destruction. You should understand that no data storage system or transmission of data over the Internet or any other public network can be guaranteed to be 100

percent secure. Please note that information collected by third parties may not have the same security protections as information you submit to us, and we are not responsible for protecting the security of such information.

V. YOUR CHOICES

You may opt out of receiving general health and wellness or treatment options that may be relevant to you by emailing us at privacy@amwell.com. You may also request that we delete your personal information by sending us an email at privacy@amwell.com. We may not be able to accommodate your request if we believe it would violate any law or legal requirement or cause the information to be incorrect. For more information about your choices see the HIPAA Notice referenced above.
You may be able to refuse or disable cookies by adjusting your web browser settings. Because each web browser is different, please consult the instructions provided by your web browser (typically in the "help" section). Please note that you may need to take additional steps to refuse or disable Local Shared Objects and similar technologies. For example, Local Shared Objects can be controlled through the instructions on Adobe's Setting Manager page. If you choose to refuse, disable, or delete these technologies, some of the functionality of the Services may no longer be available to you.

VI. THIRD-PARTY ADVERTISING, LINKS, AND CONTENT

Amwell uses third party vendors and service-providers that help us provide you the Services. These third party vendors and service providers only collect information about your use of our Platform in order to support us in providing you the Services. Some of our websites may contain links to content maintained by third parties that we do not control. We allow third parties, including business partners, advertising networks, and other advertising service providers, to collect information about your online activities through cookies, pixels, local storage, and other technologies to provide you interest based advertising. These third parties may use this information to display advertisements on our websites and elsewhere online tailored to your interests, preferences, and characteristics. Some of these third parties may participate in an industry organization that gives users the opportunity to opt out of receiving ads that are tailored based on your online activities. Due to differences between using apps and websites on mobile devices, you may need to take additional steps to disable targeted ad technologies in mobile apps.

Many mobile devices allow you to opt out of targeted advertising for mobile apps using the settings within the mobile app or your mobile device. For more information, please check your mobile settings. You also may uninstall our apps using the standard uninstall process available on your mobile device or app marketplace. We are not responsible for the privacy practices of these third parties, and the information practices of these third parties are not covered by this Privacy Policy.

To opt out of interest-based advertising across browsers and devices from companies that participate in the Digital Advertising Alliance or Network Advertising Initiative opt-out programs, please visit their respective websites. You may also be able to opt-out of interest-based advertising through the settings within the mobile app or your mobile device, but your opt-out choice may apply only to the browser or device you are using when you opt-out, so you should opt out on each of your browsers and devices if you want to disable all cross-device linking for interest-based

advertising. If you opt out, you will still receive ads but they may not be as relevant to you and your interests, and your experience on our Services may be degraded.

Do-Not-Track Signals and Similar Mechanisms. Some web browsers transmit "do-not-track" signals to websites. Because of differences in how web browsers incorporate and activate this feature, it is not always clear whether users intend for these signals to be transmitted, or whether they even are aware of them. We currently do not take action in response to these signals.

VII. CALIFORNIA RESIDENTS

Under the California Consumer Privacy Act of 2018 (CCPA), California residents have additional privacy rights which are addressed in this Section VII. These rights apply solely to California residents and are in addition to the rights stated in this Privacy Policy. The CCPA does not apply to information regulated either by the California Confidentiality of Medical Information Act (CMIA), the Health Insurance Portability and Accountability Act of 1996 (HIPAA), or the Health Information Technology for Economic and Clinical Health Act (HITECH), nor does it apply to covered entities, including providers of health care, and their business associates, who maintain patient information in accordance with those laws.

We do not sell your personal information, have not sold your personal information within the prior 12 months, and only use and disclose your personal information as stated in this Privacy Policy. You have the right to request we provide you with details about the information we collect and disclose about you within the prior 12 months, including: (i) the categories of personal information we collect about you, (ii) the categories of the sources of personal information we collect about you, (iii) our business or commercial purpose for collecting that information, (iv) the categories of personal information that were disclosed for a business purpose, (v) the categories of third parties to whom we disclosed that personal information, and (vi) the specific pieces of personal information we collect about you. You may also request that we delete your information. These rights are subject to certain exceptions and limitations permitted by CCPA. To submit an access or deletion request, you may email us at privacy@amwell.com stating your request with sufficient detail and providing information that allows us to reasonably verify you as the person whose data is the subject of such request. We will not respond to more than two requests from you in a 12-month period.
We will not discriminate against you if you exercise your rights under CPPA. By exercising your rights you will not be (i) subject to denial of goods or services, (ii) charged a different price or rate, or (iii) provided different quality of service.

VIII. INTERNATIONAL USERS

We maintain information in the United States of America and in accordance with the laws of the United States, which may not provide the same level of protection as the laws in your jurisdiction. By using the website and providing us with information, you understand and agree that your information may be transferred to and stored on servers located outside your resident jurisdiction and, to the extent you are a resident of a country other than the United States, that you consent to the transfer of such data to the United States for processing by us in accordance with this Privacy Policy.

IX. CHILDREN

We do not knowingly allow individuals under the age of 18 to create accounts that allow access to our Services.

X. CHANGES TO THE PRIVACY POLICY

We may update this Privacy Policy from time to time. When we update the Privacy Policy, we will revise the “Effective Date” date above and post the new Privacy Policy. We recommend that you review the Privacy Policy each time you visit the Services to stay informed of our privacy practices.

XI. QUESTIONS?

If you have any questions about this Privacy Policy or our practices, please email us at privacy@amwell.com.

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